

Court No. - 39

Case :- WRIT - C No. - 46194 of 2014

Petitioner :- M/S Sumiti Alloys Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Shri Chandan Agarwal, A.N. Singh

Hon'ble Krishna Murari, J.

Hon'ble Harsh Kumar, J.

By means of this petition, petitioner has challenged the demand notice dated 22.05.2014 issued by respondent no.2 demanding additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005.

Heard learned counsel for the petitioner, Shri A.N. Singh for respondent no. 3. Notice on behalf of respondent nos. 1 and 2 has been accepted by Shri Chandan Agarwal.

Learned counsel for the petitioner submits that large number of identical writ petitions challenging the same demand notice have been entertained and interim orders have been passed by this Court. Reference has been made to the order dated 7.10.2009 passed in Writ Petition No. 51844 of 2009 (M/s Supreme Ceramics Limited Vs. Paschimanchal Vidyut Vitran Nigam Ltd. and others). It is also pointed out that in several writ petitions, identical questions are involved for adjudication.

Learned counsel for all the respondents may file counter affidavit within four weeks.

List after expiry of the aforesaid period along with record of Writ Petition (C) No. 51844 of 2009 and other connected writ petitions.

Notice is taken of the fact that though the writ petitions involving identical questions have been bunched together, but the same could not be heard and decided on merits for want of counter affidavit from the respondent no. 3. However, Sri A.N. Singh, appearing for the respondent no.3 has assured that in this case, counter affidavit will be filed within the time allowed.

In view of the interim order as already granted in writ petition No. 51844 of 2009 as referred above and various other writ petitions, it is provided without prejudice to the right and contention of the parties, until further orders of this Court, the respondents are restrained from demanding additional security from the petitioner.

Order Date :- 1.9.2014

VKS

Court No. - 21

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Counsel for Respondent :- Shri Candan Agarwal,A.N. Singh

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

1. Sri Mayank Agarwal, counsel for the petitioner, prays for dismissal of the writ petition as not pressed.
2. It is dismissed accordingly.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 19.5.2023

Jaideep/-